

Form No.HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Writ Petition No.17142/2018

Hafiz Muhammad Saif Ullah Vs DSP etc.

S.No.of order/ Proceedings.	Date of order/ Proceedings	Order with signature of judge, and that of parties or counsel, where necessary.
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20.11.2018 Malik Iftikhar Arif Joyia, Advocate for the petitioner.

The petitioner has filed the instant petition with following
prayer: -

“Under the circumstances, it is most respectfully prayed that instant application may kindly be accepted and the proceedings conducted by the respondents in police station P/S Saddar, U/S 107/150 and other proceedings written by Vasiqa Zafar may kindly be declared illegal, null and void without lawful authority and be quashed in the interest of justice and direction may graciously be issued to respondents not interfere in the affair of Masjid”.

Learned counsel for the petitioner in support of instant petition submits that police was not competent to initiate proceedings under Section 107/150 Cr.P.C. and agreement written by Vasiqa Navees Zafar is also illegal, hence these both are liable to be declared as null and void, and quashed.

2. Heard.
3. Part IV of the Code of Criminal Procedure, 1898 (hereinafter referred as Code) deals with the subject of **“PREVENTION OF OFFENCES”** and its Chapter-VIII relates to **“OF SECURITY OF KEEPING THE PEACE AND FOR GOOD BEHAVIOUR”**, its Part-B relates to **“SECURITY FOR**

**KEEPING THE PEACE IN OTHER CASES AND SECURITY
FOR GOOD BEHAVIOR**". Section 107 of the Code falls in

Part-B and being reproduced for ready reference: -

107. Security for keeping the peace in other cases. (1) *Whenever (the Magistrate Ist Class) is informed that any person is likely to commit a breach of the peace or disturb the public tranquility or to do any wrongful act that may probably occasion a breach of the peace or disturb the public tranquility, the Magistrate if in his opinion there is sufficient ground for proceeding may, in manner hereinafter provided, require such person to show cause why he should not be ordered to execute a bond with or without sureties, for keeping the peace for such period not exceeding [three years] as the Magistrate thinks fit to fix.*

(2) *Proceedings shall not be taken under this section unless either the person informed against or the place where the breach of the peace or disturbance is apprehended, is within the local limits of such Magistrate's jurisdiction, and no proceedings shall be taken before any Magistrate, [except with the approval of Sessions Judge], unless both the persons informed against and the place where the breach of the peace or disturbance is apprehended, are within the local limits of the Magistrate's jurisdiction.*

(3) **Procedure of Magistrate not empowered to act under sub-section (1).** *When any Magistrate not empowered to proceed under sub-section (1) has reason to believe that any person is likely to commit a breach of the peace or disturb the public tranquility or to do any wrongful act that may probably occasion a breach of the peace or disturb the public tranquility, and that such breach of the peace or disturbance cannot be prevented otherwise than by detaining such person in custody, such Magistrate may, after recording his reason, issue a warrant for his arrest (if he is not already in custody or before the Court), and may send him before a Magistrate empowered to deal with the case, together with a copy of his reasons.*

(4) *A Magistrate before whom a person is sent under [sub-section (3)] may in his discretion detain such person in custody [pending further action by himself under this Chapter].*

Then Chapter-XIII of the Code deals with the subject of “preventive action of the police” and Sections 150 and 151 of the Code fall in this chapter and are being reproduced for ready reference: -

“150. Information of design to commit such offences. *Every police-officer receiving information of a design to commit any cognizable offence, shall communicate such information to the police officer to whom he is subordinate,*

and to any other officer whose duty it is to prevent or take cognizance of the commission of any such offence.

151. Arrest to prevent such offences. *A police-officer knowing of a design to commit any cognizable offence may arrest, without orders from a Magistrate and without a warrant, the person so designing, if it appears to such officer that the commission of the offence cannot be otherwise prevented.”*

Perusal of above provisions of law reveals that it is duty of the police to act under Section 107, 150 or 151 of the Code (as the case may be) for the purpose of keeping security, peace and also for taking measure for preventing commission of offence, hence proceedings under Section 107/150 of the Code statedly initiated by the police in the instant case are not without jurisdiction and in this regard if petitioner has any grievance, he can contest the same before the Area Magistrate concerned, however, said exercise cannot be done through instant constitutional petition. Similarly for getting any agreement (statedly prepared by Vasiqa Navees Zafar) declared as illegal, petitioner can avail appropriate remedy before the Civil Court and said target cannot be achieved through instant constitutional petition.

4. In view of the above, instant petition is meritless and thus dismissed in limine.

(Farooq Haider)
Judge

Naeem

Approved for reporting

Judge